

ASCII MASTER FLOW – PANEL 1/9: Constitutional change: flexible routes, entrenched identity

CONSTITUTIONAL CHANGE

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+-- SIMPLE MAJORITY OUTSIDE ARTICLE 368
|   +-- ordinary legislative power; legally not an Article 368 amendment
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+-- ARTICLE 368 SPECIAL MAJORITY
|   +-- majority of total membership of each House
|   +-- at least two-thirds of members present and voting
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+-- SPECIAL MAJORITY + RATIFICATION BY AT LEAST HALF OF STATES
    +-- only for the exact federal proviso subjects
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POWER DISTINCTION

ordinary legislative power -> changes law within constitutional competence
constituent power -> changes constitutional text by addition, variation or repeal

IDENTITY LIMIT

Parliament may amend every provision, but cannot destroy the Constitution's basic structure.

ASCII MASTER FLOW – PANEL 2/9: Article 368 procedure: separate Houses, no shortcuts

AMENDMENT BILL

- +-- may originate in either House of Parliament
- +-- may be introduced by a minister or private member
- +-- no prior Presidential recommendation is required

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EACH HOUSE PASSES SEPARATELY

- +-- majority of total membership
- +-- two-thirds of members present and voting
- +-- abstentions reduce present-and-voting denominator, not total membership

|

NO JOINT SITTING -> failure in either House ends the Bill

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STATE RATIFICATION, IF PROVISIO APPLIES

- +-- resolutions by at least half of State legislatures
- +-- no time limit in Article 368; States cannot amend the Bill

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PRESIDENT SHALL ASSENT -> Constitution stands amended

2026 defeated Bill: total-membership limb passed; two-thirds limb failed.

ASCII MASTER FLOW – PANEL 3/9: Federal ratification: the exact Article 368 proviso map

RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO

- +-- election of the President: Articles 54 and 55
- +-- Union and State executive power: Articles 73 and 162
- +-- Supreme Court and High Courts: Chapter IV of Part V; Chapter V of Part VI
- +-- distribution of legislative powers: Chapter I of Part XI
- +-- any of the Lists in the Seventh Schedule
- +-- representation of States in Parliament
- +-- Article 368 itself

NOT THE RULE

- +-- every amendment with federal consequences
- +-- every change concerning a Governor
- +-- consent of every State

STATE ROLE

ratify or refuse the passed text -> no initiation, amendment or joint conference power.

ASCII MASTER FLOW – PANEL 4/9: From Shankari Prasad (1951) to Minerva Mills (1980): the core doctrine chain

SHANKARI PRASAD (1951) -> Amendment is not Article 13(2), FR may be amended

SAJJAN SINGH (1964) -> repeats amendability; doubts emerge

I.C. GOLAKNATH (1967) -> Parliament cannot amend Fundamental Rights

1971 24TH AMENDMENT -> constituent power and mandatory assent affirmed

1971 25TH AMENDMENT -> Article 31C and property-related changes

KESAVANANDA BHARATI (1973) -> every provision amendable; basic structure cannot be damaged

INDIRA NEHRU GANDHI V. RAJ NARAIN (1975) -> free and fair elections / judicial review protect democracy

1976 42ND AMENDMENT -> attempted unlimited amending power

MINERVA MILLS (1980) -> limited amending power and FR-DPSP harmony protected

WAMAN RAO (1980) -> 24 April 1973 Ninth Schedule cut-off

I.R. COELHO (2007) -> post-cut-off insertions face basic-structure impact review

FORMULA: amend the Constitution -> do not destroy its constitutional identity.

ASCII MASTER FLOW – PANEL 5/9: Basic-structure elements: non-exhaustive and case-attributed

BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED CONSTITUTIONAL LIST

- +-- supremacy of the Constitution
- +-- republican and democratic government
- +-- secularism
- +-- federalism
- +-- separation of powers
- +-- rule of law
- +-- judicial review
- +-- independence of the judiciary
- +-- free and fair elections
- +-- dignity, liberty and equality within the rights architecture
- +-- harmony and balance between Fundamental Rights and DPSP
- +-- limited amending power

METHOD

identify the amendment -> identify the protected feature -> prove damage, not policy dislike

TRAP: Kesavananda Bharati (1973) did not supply one unanimous, exhaustive catalogue.

ASCII MASTER FLOW – PANEL 6/9: Ninth Schedule: insertion is not immunity after the 1973 cut-off

FIRST AMENDMENT, 1951

+-- Article 31B + Ninth Schedule protect listed laws from specified rights challenge

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WAMAN RAO (1980)

+-- 24 April 1973 becomes the controlling cut-off

|

I.R. COELHO (2007)

+-- post-cut-off insertions are reviewable

+-- court tests impact on Part III rights forming part of basic structure

|

OUTCOME

reviewable != automatically invalid

listed != permanently immune

pre-cut-off != beyond every constitutional question

ANSWER TEST

1 identify insertion date

2 identify affected right / basic feature

3 examine actual constitutional damage

4 state the remedy narrowly.

ASCII MASTER FLOW – PANEL 7/9: The Anjum Kadari (2024) boundary: amendments versus ordinary statutes

CONSTITUTIONAL AMENDMENT

- +-- directly tested against basic structure under Article 368 doctrine

ORDINARY STATUTE

- +-- cannot be invalidated only because it offends an undefined basic feature
- +-- invalidity must be traced to:
 - +-- legislative incompetence
 - +-- violation of Part III
 - +-- another concrete constitutional provision

ANJUM KADARI (2024) INSC 831

- +-- supplies the current technical boundary
- +-- basic features may guide interpretation and cumulative constitutional reading
- +-- they do not become a free-standing super-Article against ordinary legislation

EXAM CORRECTION

write "violates Article X embodying the feature", not merely "violates basic structure".

ASCII MASTER FLOW – PANEL 8/9: Current controls and the judicial-supremacy debate

106TH AMENDMENT

- +-- S.O. 1922(E), 16 April 2026 commenced the amendment framework
- +-- Article 334A still requires post-commencement census figures + delimitation
- +-- therefore commenced != operational reservation

131ST AMENDMENT BILL, 2026

- +-- proposal, not law; negatived in Lok Sabha on 17 April 2026
- +-- useful for dual-majority arithmetic, not for precedent or current seat ceilings

DEBATE

judicial defence -> majority cannot abolish elections, rights, federal voice or review
critique -> doctrine is unwritten, uncertain and potentially counter-majoritarian

DISCIPLINED POSITION

text + precedent + actual damage + narrow remedy -> legitimate identity review.

ASCII MASTER FLOW – PANEL 9/9: Prelims traps, verified PYQs and the Mains answer spine

PRELIMS CONTROL

Article 368 -> addition, variation or repeal	no joint sitting
both Houses use both special-majority limbs	President shall assent
State ratification -> at least half, exact list	simple-majority changes lie outside 368
basic structure -> non-exhaustive doctrine	ordinary-statute boundary applies
Ninth Schedule -> post-24 April 1973 review	reviewability is not automatic invalidity

VERIFIED PYQS

2 Mains: 2019 Q12 and 2025 Q12

8 Prelims: 2018 Q5; 2019 Q45/Q47; 2020 Q13; 2022 Q13; 2023 Q34; 2024 Q66; 2025 Q58

Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys remain labelled inferred.

MAINS SPINE

1 distinguish ordinary, special and ratified change routes

2 state exact Article 368 procedure

3 trace doctrine chronology and protected identity

4 apply Ninth Schedule / ordinary-statute / current controls

5 evaluate flexibility versus judicial review and conclude: amend, do not destroy.